



File No.: EXP202210554

RESOLUTION OF FILE OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 9, 2022, a complaint was filed with entry registration number REGAGE22e00039220010 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint for receiving commercial calls from the calling lines ***PHONE.1, ***PHONE.2, and ***PHONE.3 between July 26 and September 9, 2022, on their mobile line ***PHONE.4, despite the fact that the receiving line has been registered in the Robinson List since September 23, 2019.

Along with the notification, the following is provided:

- Certificate of registration of the receiving line in the Robinson List.
- Screenshots evidencing the receipt of the calls.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 10, 2022, as recorded in the acknowledgment of receipt in the file. No response has been received to this forwarding letter.

THIRD: On December 9, 2022, in accordance with Article 65 of the LOPDGDD, the submitted complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, having knowledge of the following aspects:

INVESTIGATED ENTITIES

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the numbering registry on the website of the "Association of Operators for Portability," ***URL.1, it is verified that, as of the date of investigation of this file, the operators of the originating numbers of the calls were:

***PHONE.2

LEAST COST ROUTING

***PHONE.5

VOXBONE

***PHONE.6

LEAST COST ROUTING

***PHONE.7

VOXBONE

***PHONE.8

VOXBONE

***PHONE.9

SINEASEN

***PHONE.3

SINEASEN

***PHONE.10

XFERA MOVILES

***PHONE.11

ORANGE

The number ***PHONE.1 referred to in the complaint was not investigated as that call appears as missed.

Regarding the complained number ***PHONE.2:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING -> NETVOISS -> COMERCIALIZADORA SYR CENTER (Venezuela)

LEAST COST indicates that none of the calls are recorded, WEWI (operator of the complainant's number) confirms the receipt of the call on September 9 but not on the 1st.

A request was sent by international certified mail to COMERCIALIZADORA SYR CENTER (Venezuela), requesting the reason for the calls, to which no response has been received.

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3/7

In reference to the claimed number ***PHONE.5:

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From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

VOXBONE -> STG COMPANY (Peru)

WEWI confirms the receipt of the call.

A request was sent by international certified mail to STG COMPANY (Peru), requesting the reason for the calls, to which no response has been received.

In reference to the claimed number ***PHONE.6:

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From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

LEAST COST ROUTING -> NETVOISS -> MIDAS SOLUTIONS CENTER (Peru)

LEAST COST indicates that the call was made, WEWI (the operator of the claimant's number) confirms the receipt of the call.

A request was sent by international certified mail to MIDAS SOLUTIONS CENTER (Peru), requesting the reason for the calls, to which no response has been received.

In reference to the claimed number ***PHONE.7:

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From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

VOXBONE -> STG COMPANY (Peru)

WEWI confirms the receipt of the call on July 9, but not on the 16th.

VOXBONE indicates that it has no record of the calls being made.

A request was sent by international certified mail to STG COMPANY (Peru), requesting the reason for the calls, to which no response has been received.

In reference to the claimed number ***PHONE.8:

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From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

VOXBONE -> STG COMPANY (Peru)

WEWI confirms the receipt of the call. VOXBONE indicates that it has no record of the call being made.

A request was sent by international certified mail to STG COMPANY (Peru), requesting the reason for

the calls, to which no response has been received.

In reference to the claimed number ***PHONE.9:

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From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

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4/7

SINEASEN -> NETVOISS (Peru)

WEWI confirms the receipt of the call.

SINEASEN indicates that the number belonged to NETVOISS on the indicated date.

TECH TELECOM, representative of NETVOISS in Spain, indicates that it did not have the line assigned nor has it acted at any time as a distributor of it.

Confirmation is requested from SINEASEN that the line ***PHONE.9 belonged to NETVOISS on 30-03-2023, to which they responded in the same manner as in the response to the initial ownership request.

Confirmation is requested from NETVOISS (TECH TELECOM) that this line did not belong to NETVOISS; no response has been received as of the date of drafting this report.

In reference to the claimed number ***PHONE.3:

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From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

LEAST COST ROUTING -> NETVOISS

LEAST COST indicates that the call was made, WEWI (the operator of the claimant's number) does not confirm the receipt of the call.

A request for ownership information was sent to NETVOISS (TECH TELECOM), to which no response has been received as of the date of drafting this report.

In reference to the claimed number ***PHONE.10:

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From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

XFERA MÓVILES -> A.A.A. (DNI: ***NIF.1)

XFERA indicates that the line was prepaid and belonged to A.A.A. (DNI: ***NIF.1)

The fiscal address of A.A.A. was requested from the AEAT, which indicated that the name and NIF do not correspond.

XFERA was asked to confirm the details of the final holder corroborating what was initially indicated.

XFERA also indicates that it has no record of the call being made.

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5/7

In reference to the claimed number ***PHONE.11:

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From the response to the requests made, it is concluded that the flow of ownership of the telephone line was:

ORANGE SPAIN -> ADVENTO NETWORKS -> STG GROUP (Peru)

ORANGE SPAIN S.A. UNIPERSONAL responded that no traffic data has been found. ADVENTO states that no calls have been made to the claimant's number from their systems. Wewi confirms the receipt of the calls.

A request was sent by international certified mail to STG GROUP (Peru), requesting the reason for the calls, to which no response has been received.

LEGAL GROUNDS

I

Competence

According to the provisions established in Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and in its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final Provision Six, Section 2, of the LGTel

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the investigations carried out by this Agency, it has been determined that regarding the numbers ***PHONE.2, ***PHONE.5, ***PHONE.6, ***PHONE.7, ***PHONE.8, and ***PHONE.11, the causes of the calls cannot be concluded as no response has been received to the requests from the final holders of these numbers located in Peru and Venezuela. It should be noted that the Spanish Agency for Data Protection has no jurisdiction over companies located in Peru and Venezuela.

Regarding the number ***PHONE.10, XFERA indicated the details of the final holder, who was a private individual, for whom the tax address was requested from the AEAT to send a request regarding the reasons for the calls. The AEAT indicates that the name and ID number do not match. XFERA confirmed this information in a subsequent request made by this Agency. Therefore, it has not been possible to investigate as the holder of this line could not be located.

The number ***PHONE.1, which is also referenced in the complaint, was not investigated as that call appears as missed.

For number ***PHONE.9, there is contradictory information between SINEASEN and TECH TELECOM (representative of NETVOISS), making it impossible to determine who the final holder of this line is as of 30-03-2023.

Regarding number ***PHONE.3, no information has been received from TECH TELECOM (representative of NETVOISS) concerning the information request made by this Agency.

As for the calls from lines ***PHONE.9 and ***PHONE.3, even though the holders of the calling lines have presumably been identified at the time of the call, it is not possible to prove that they actually made the calls and, therefore, the necessary conditions for attributing responsibility to these subjects are not met.

Thus, as it has not been possible to attribute responsibility for the making of the calls in accordance with what has been stated in the previous paragraphs, IT IS AGREED by the Director of the Spanish

Agency for Data Protection,

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the complaining party.

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7/7

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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